

Calendar Line 5**Case Name:** *Jonathan Maldonado v. Aniceto Alva***Case No.:** 21CV381717

This is a motion for attorney’s fees by defendant Aniceto Alva. It was originally scheduled to be heard on June 10, 2025, but plaintiff Jonathan Maldonado filed an objection to the motion, stating that his counsel was never properly served, and requesting a continuance “of at least 16 court days” to respond substantively. The court granted Maldonado’s request and continued the hearing to July 29, 2025.

The court has not received any opposition to the motion.⁷ Having reviewed the moving papers, the court concludes that they show good cause for an award of attorney’s fees.

First, Alva is the prevailing party on the contract (a residential lease) between himself and Maldonado. The court (Judge Geffon) awarded Alva \$12,179.00 in damages for unpaid rent and property damage by Maldonado. The court offset this award with \$1,900.00 in favor of Maldonado for a breach of the implied warranty of habitability, but the net judgment was in favor of Alva for \$10,679.00 “plus costs.”

Second, Alva also prevailed on Maldonado’s retaliation claim, which under Civil Code section 1942.5, subdivision (i), allows the “prevailing party” to make a claim for attorney’s fees.

Third, the lease between the parties included a clause providing for “reasonable attorney’s fees and court costs” to the “prevailing party.”

Fourth, as Alva points out, he did not bring an unlawful detainer action against Maldonado. Rather, this suit was initiated by Maldonado, and unlike an unlawful detainer action, it lasted over three and a half years, culminating in a two-day trial. Thus, although \$56,667.67 in fees and \$5,569.66 is a hefty amount, particularly given the amount of ultimate recovery, it is supported by an “attorney time sheet” that shows numerous reasonable tasks performed by Alva’s counsel over the course of several years—from June 2021 to February 2025. The court agrees with Alva that this case was not “litigated under ordinary circumstances,” under Code of Civil Procedure section 871.11, subdivision (b).

For the foregoing reasons, the court GRANTS the motion for attorney’s fees and costs in the total amount of \$62,237.33.

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⁷ Instead, on the eve of the hearing, after the court had already prepared this tentative ruling, Maldonado submitted an eleventh-hour ex parte request for yet another continuance of the hearing—opposed by Alva—which the court denied for failure to show good cause.

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Case Name: *Amit Rattu et al. v. Melissa Baxter*

Case No.: 24CV441725

This case has a procedural history that can only be described as desultory.

On May 22, 2025, the court dismissed the case without prejudice, based on multiple failures to appear at hearings by the plaintiffs, Amit Rattu, Melanie Campbell, and Munir Omar Ali (collectively, “Plaintiffs”). (The May 22 hearing was on an order to show cause why the case should not be dismissed for a prior failure to appear.) On June 2, 2025, Plaintiffs filed an ex parte application to set aside the dismissal. The following day, the court signed an order setting the application for a noticed law-and-motion hearing on July 29, 2025. The court sent notice to all the parties. The court then received a belated opposition to the ex parte application from defendant Melissa Baxter on June 6, 2025. Finally, on July 10, 2025, Plaintiffs filed, without leave of court, a revised “notice of motion” and memorandum of points and authorities in support of the request to set aside the dismissal.

Because Plaintiffs filed their July 10, 2025 “notice of motion” only 13 court days before the hearing, it is untimely, and the court will disregard it. Plaintiffs’ original ex parte application describes counsel’s various difficulties in appearing remotely for the hearings in this case. The court finds that these papers sufficiently establish “mistake, inadvertence, surprise, or excusable neglect” on the part of Plaintiffs’ counsel under Code of Civil Procedure section 473, subdivision (b). Although the court certainly understands Baxter’s frustration with the way this case has been handled by opposing counsel—as recounted in her handwritten ex parte opposition—the court finds that the standard for mandatory relief under section 473(b) has been met.

The motion to set aside is granted, and the court sets a further case management conference on **October 14, 2025 at 10:00 a.m.** in Department 10. In its earlier order setting the July 29, 2025 hearing, the court noted: “Given plaintiff’s counsel’s failure to use remote appearance technology to appear on both April 1, 2025 and May 22, 2025, counsel should plan to appear in person for future hearings.” (See June 3, 2025 Order, p. 5:22-24.) The court now amends this to state that plaintiffs’ counsel may appear remotely, but it is his responsibility to ensure that he is able to use Microsoft Teams properly, with both a working camera and microphone. If he is unable to do so, he should plan to appear in person, which is always the optimal way to appear in court in any event. As a reminder, the reason the court allows remote appearances at hearings is to increase *access* to the court, not to increase the number of weak excuses for failures to appear.

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